

24STCV33963 24STCV33963

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-02

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Case Number: 24STCV33963 Hearing Date: July 2, 2026 Dept: 512

HEARING DATE: Thurs., July 2, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Gottlieb v. Volkswagen Group of

America, COMPL. FILED: 12-23-24

Inc., et al.

CASE NUMBER: 24STCV33963

NOTICE: OK

PROCEEDINGS: DEFENDANT'S MOTIONS TO COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM

INTERROGATORIES, AND SPECIAL INTERROGATORIES, AND DEEM REQUESTS FOR ADMISSIONS
ADMITTED

MOVING PARTY:

Defendant Volkswagen Group of

America, Inc.

RESP. PARTY: Plaintiff Blima Gottlieb

MOTIONS TO

COMPEL INITIAL RESPONSES TO REQUEST FOR PRODUCTION, FORM INTERROGATORIES, AND

SPECIAL INTERROGATORIES; MOTION TO DEEM

REQUESTS FOR ADMISSIONS ADMITTED; REQUEST FOR SANCTIONS

(CCP §§ 2030.290; 2031.300; 2033.280)

TENTATIVE RULING:

Defendant Volkswagen Group
of America, Inc.'s Motion to Compel Responses to Form Interrogatories,
Motion to Compel Responses to Special Interrogatories, Motion to Deem the Truth
of Matters Specified in Requests for Admission, and Motion to Compel Responses
to Requests for Production of Documents to Plaintiff Blima Gottlieb are MOOT.

Defendant's requests for
sanctions as to all Motions are GRANTED in the reduced total amount of \$1,425.00, payable to Defendant's counsel by
Plaintiff and Plaintiff's Counsel of Record within 30 days of this order.

Moving party is ordered to
give notice.

SERVICE:

[X] Proof of
Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address
(CCP §§ 1013, 1013a) OK

[X] 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on May 27 and June 18, 2026 [] Late [] None

REPLY: None
filed as of June 30, 2026 [] Late [X]
None

ANALYSIS:

I.
Background

On December 23, 2024, Plaintiff Blima

Gottlieb ("Plaintiff") filed a Complaint for Violation of Statutory Obligations against Defendants Volkswagen Group of America, Inc. ("Volkswagen Group") and Volkswagen Santa Monica ("Defendants") and Does 1-10. (Compl., p. 1.) The underlying Song-Beverly Consumer Warranty Act action arises from a warranty contract between the parties, and Plaintiff's purchase of a vehicle from Defendants. (See Compl., p. 4.)

On January 29, 2025, Volkswagen Group filed an Answer.

On May 12, 2026, Volkswagen Group filed the instant Motion to Compel Responses to Form Interrogatories ("FROGs"), Motion to Compel Responses to Special Interrogatories ("SROGs"), Motion to Deem the Truth of Matters Specified in Requests for Admission ("RFAs"), and Motion to Compel Responses to Requests for Production of Documents ("RPDs") to Plaintiff Blima Gottlieb (collectively, "the Motions") and accompanying requests for sanctions.

On May 13, 2026, the Court, in pertinent part, granted in part Volkswagen Group's Ex Parte Application to Advance Hearing Date of Motions to Compel and consolidated the Motion hearings for July 2, 2026. (5/13/26 Order.)

On May 27, 2026, Plaintiff filed an Opposition to the SROGs Motions, FROGs Motions, and RPDs Motions.

On June 18, 2026, Plaintiff filed an Opposition to the RFAs Motion.

No Replies to the Motions have been filed.

II.

Legal

Standard & Discussion

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also

waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) “If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product...” (Code Civ. Proc., § 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7.” (Code Civ. Proc., § 2033.280, subd. (b).)

Discovery

Requests

Volkswagen Group contends Plaintiff

failed to timely respond to Volkswagen Group's FROGs, SROGs, RPDs, and RFAs by the statutory deadline. (Motions.)

In Opposition, Plaintiff declares under penalty of perjury that all verified discovery responses have been provided to Volkswagen Group in advance of the instant hearing date. (Opps., Bloom Decls.) Further, Plaintiff provides copies of the FROGs, RPDs, and RFAs responses, their respective verifications, and proof of service that the responses were served on Volkswagen Group. While Plaintiff provides a copy of the SROGs verification, Plaintiff fails to attach the SROGs responses to the SROGs Opposition. However, given Bloom's declaration regarding the nature of the SROGs responses, the SROGs verification page and accompanying proof of service accompanying the Opposition, and the lack of Reply regarding the SROGs Motion, the Court finds verified responses have been provided by Plaintiff to Volkswagen Group as to all discovery requests in advance of the instant hearing date.

As such, the Motions are MOOT.

Sanctions

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to compel responses. (See Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

"A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)

Here, Plaintiff concedes Plaintiff failed to serve timely responses to Volkswagen's Group's FROGs, SROGs, RPDs, and RFAs by the statutory deadline. (See Motions; Opps.)

However,

Plaintiff contends sanctions are not warranted as the delay in production of discovery responses was due to Plaintiff's counsel's inadvertent mistake and excusable neglect – namely, “the departure of several staffers at the law firm of Plaintiff's counsel” that “caused confusion regarding discovery deadlines in this matter and a delay in serving discovery responses.” (Opps., Bloom Decls., ¶ 4.)

The

Court finds sanctions are warranted in this matter.

The Court finds the

Notices of Motion for all Motions comply with Code of Civil Procedure section 2023.040.

Volkswagen

Group requests monetary sanctions of \$1,837.50 or \$2,035.00 per Motion against Plaintiff, reflecting \$60.00 in filing fees and time incurred in hourly fees to prepare each Motion, review the Opposition, and prepare a Reply brief. (Notice of Motions; Motions, Shanahan Decls., ¶ 10.) Volkswagen Group's counsel states the hourly billing rate for the work on the Motions is \$395.00 per hour. (Motions, Shanahan Decls., ¶ 10.)

Given the straightforward and repetitive nature of the Motions and the lack of Reply briefs filed, Volkswagen Group's requests for monetary sanctions against Plaintiff and Plaintiff's counsel are GRANTED in the reduced total amount for all four Motions of \$1,425.00, reflecting 3 hours incurred at \$395.00 per hour and filing fees of \$60.00 per motion.

III.

Conclusion & Order

For the foregoing reasons,

Defendant Volkswagen Group of America, Inc.'s Motion to Compel Responses to Form Interrogatories, Motion to Compel Responses to Special Interrogatories, Motion to Deem the Truth of Matters Specified in Requests for Admission, and Motion to Compel Responses to Requests for Production of Documents to Plaintiff Blima Gottlieb are MOOT.

Defendant's requests for

sanctions as to all Motions are GRANTED in the reduced total amount of \$1,425.00, payable to Defendant's counsel by Plaintiff and Plaintiff's Counsel of Record within 30 days of this order.

Moving party is ordered to

give notice.